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#8 - KIMBLE SHAWN CHRISTIAN vs RALPHS GROCERY COMPANY, AN OHIO CORPORATION, et al.

DEMURRER

AND MOTION TO STRIKE

Defendants American

Guard Services, Inc. ("AGS") and Ralphs Grocery Company ("Ralphs") demur to Plaintiff Kimble Shawn Christian's complaint and move to strike portions of it.

Defendants challenge the causes of

action for general negligence, negligent hiring, retention, and supervision, and false imprisonment, as well as certain damages and direct-liability allegations.

Plaintiff alleges

that, on March 3, 2026, he sought a refund at a Ralphs store near 10900

Magnolia Boulevard in North Hollywood when John Doe threatened him and Jacob Doe grabbed and restrained him, causing bodily injury.

The

false-imprisonment claim further alleges that Jacob Doe intentionally grabbed Plaintiff's arms, placed him in handcuffs, restrained him against his will, and prevented him from leaving the premises.

Plaintiff alleges

that John Doe and Jacob Doe were security guards employed by AGS, Ralphs, and Doe defendants and acted within the course and scope of their employment or agency. Plaintiff also alleges that the corporate defendants negligently hired, trained, retained, and supervised the guards despite knowing or having reason to know that they were unfit.

The Exemplary

Damages Attachment expressly requests punitive damages from Jacob Doe based on alleged malice and oppression. It also alleges that AGS and Ralphs knew of Jacob Doe's unfitness and authorized his conduct, but it does not identify an officer, director, or managing agent responsible for that knowledge or authorization.

Tentative Ruling

The demurrer is

SUSTAINED WITH LEAVE TO AMEND as to the second cause of action and otherwise OVERRULED.

The motion to strike

is GRANTED WITH LEAVE TO AMEND only to the extent the complaint's general punitive damages prayer may be construed as seeking punitive damages from AGS or Ralphs.

Plaintiff shall file

and serve any amended complaint within 20 days after service of notice of this order.

Demurrer – Legal Authority
and Analysis

A demurrer should be

sustained only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, et seq.) As is relevant here, a court should sustain a demurrer if a complaint does not allege facts that are legally sufficient to constitute a cause of action. (See id. § 430.10, subd. (e).) As the Supreme Court held in *Blank v. Kirwan* (1985) 39 Cal.3d 311: "We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. . . . Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (Id., at p. 318; see also *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 ["A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. [Citation.]"])

"In determining whether the complaint is sufficient as against the demurrer ... if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 639.)

"A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khouri v. Maly's of Cal., Inc. (1993) 14 Cal.App.4th 612, 616.) Such demurrers "are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (Mahan v. Charles W. Chan Insurance Agency, Inc. (2017) 14 Cal.App.5th 841, 848.)

As a preliminary matter, Plaintiff argues that Defendants improperly combined the demurrer and motion to strike and that AGS's counsel lacked authority to seek relief for Ralphs.

The first objection is overruled. Motion papers may be combined when the required components are separately identified in the caption. (Cal. Rules of Court, rule 3.1112.) A motion to strike accompanying a demurrer must be filed concurrently and heard at the same time. (Cal. Rules of Court, rule 3.1322.) The combined filing separately identifies both requests for relief, and Plaintiff filed substantive oppositions to each.

The Court also declines to deny the motions based on counsel's asserted lack of authority. An attorney's appearance carries a presumption of authority to act for the represented party. (Gagnon Co., inc., v. Nevada Desert Inn (1955) 45 Cal.2d 448, 459.) Defendants represent that AGS accepted Ralphs's defense under contractual defense and indemnity obligations, and Plaintiff identifies no resulting prejudice.

First Cause of Action—General Negligence

Negligence requires

duty, breach, causation, and injury. (Kesner v. Superior Court (@016) 1 Cal.5th 1132, 1159.) The complaint alleges that Defendants owed Plaintiff, a store patron, a duty of reasonable care; that Jacob Doe negligently grabbed and restrained him; that the Doe guards acted within the course and scope of their employment or agency; and that the conduct caused physical and emotional injury. These allegations provide fair notice of a negligence theory, including a vicarious-liability theory against the alleged employers.

Defendants contend that Plaintiff impermissibly recasts intentional conduct as negligence. The pleading, however, may allege alternative theories concerning the nature and reasonableness of the force used. Whether the evidence ultimately establishes intentional restraint, negligent use of force, or both cannot be resolved on demurrer. The demurrer to the first cause of action is OVERRULED.

Second Cause of Action—Negligent Hiring, Retention, and Supervision

To establish a cause of action for negligent hiring, retention, or supervision, a plaintiff must show that the employer knew or should have known that hiring or retaining the employee created a particular risk or hazard and that particular harm occurs. (See Z.V. v. County of Riverside (2015) 238 Cal.App.4th 889, 902.)

Plaintiff alleges that Defendants knew or should have known the guards were unfit and created the type of danger that injured Plaintiff. But the complaint does not allege any ultimate fact identifying the nature of the guards' preexisting unfitness or any pre-incident circumstance placing either corporate defendant on notice of a propensity to use improper force or unlawfully detain patrons. Plaintiff must allege some factual basis for the essential notice element. The present allegation merely restates that element. The demurrer to the second cause of action is SUSTAINED WITH LEAVE TO AMEND.

Third Cause of Action—False Imprisonment

To state a cause of action for false imprisonment, a plaintiff must show: (1) nonconsensual,

intentional confinement of a person; (2) without lawful privilege; and (3) for an appreciable period. (*Easton v. Sutter Coast Hosp.* (2000) 80 Cal.App.4th 485, 496.)

The shopkeeper's or merchant's privilege codified in Penal Code section 490.5(f)(1) provides, "A merchant may detain a person for a reasonable time for the purpose of conducting an investigation in a reasonable manner whenever the merchant has probable cause to believe the person to be detained is attempting to unlawfully take or has unlawfully taken merchandise from the merchant's premises." Section 490.5(f)(7) further provides, "in any civil action brought by any person resulting from a detention or arrest by a merchant, it shall be a defense to such action that the merchant detaining or arresting such person had probable cause to believe that the person had stolen or attempted to steal merchandise and that the merchant acted reasonably under all the circumstances."

The complaint

alleges that Jacob Doe intentionally grabbed Plaintiff, handcuffed him, restrained him against his will for a period of time, and prevented him from leaving. It further alleges that Jacob Doe acted within the course and scope of his employment or agency with the corporate defendants. Those allegations adequately plead intentional, nonconsensual confinement and a basis for vicarious liability.

The merchant's

privilege permits detention only when the merchant has probable cause to suspect theft and conducts the investigation for a reasonable time and in a reasonable manner. The complaint alleges that Plaintiff was seeking a refund; it does not allege suspected theft, probable cause, a limited investigation, or circumstances establishing reasonable force as a matter of law. The privilege therefore does not defeat the claim on demurrer. The demurrer to the third cause of action is **OVERRULED**.

Uncertainty

A special demurrer

for uncertainty lies where a pleading is ambiguous or unintelligible. (Code Civ. Proc., § 430.10.) Here, the complaint identifies the physical conduct attributed to John Doe and Jacob Doe and the employment, agency, and direct-negligence theories asserted against AGS and Ralphs. The complaint is

not so uncertain that Defendants cannot reasonably understand and respond to the remaining claims. The demurrer for uncertainty is OVERRULED.

Motion to Strike

Punitive Damages

Punitive damages may be recovered upon proof of oppression, fraud, or malice. A corporate employer is not liable for punitive damages based on an employee's conduct unless the requisite advance knowledge and conscious disregard, authorization, ratification, or wrongful conduct is attributable to an officer, director, or managing agent. (Civ. Code, § 3294(b).)

The complaint alleges intentional restraint, handcuffing, and conscious disregard by Jacob Doe and expressly requests punitive damages from him. Read as a whole, those allegations are sufficient at the pleading stage to preserve a punitive-damages claim against Jacob Doe. The instant motion does not establish a basis to strike allegations directed solely at the individual defendant.

To the extent the complaint's general punitive damages prayer may be construed as seeking punitive damages from AGS or Ralphs, it is insufficient. The complaint identifies no officer, director, or managing agent who possessed advance knowledge, authorized the conduct, ratified it, or personally acted with oppression, fraud, or malice. Respondeat superior allegations alone do not satisfy the additional corporate-culpability requirement. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, n. 11 [“[P]unitive damages are not assessed against employers on a pure respondeat superior basis. Some evidence of fault by the employer itself is also required.”].)

Accordingly, the motion is GRANTED WITH LEAVE TO AMEND only insofar as the punitive-damages prayer is directed against AGS or Ralphs. The motion does not affect the punitive-damages allegations or prayer against Jacob Doe.

Knowledge and Group-Pleading Allegations

Defendants seek to

strike allegations that they knew or should have known of the guards' unfitness and allegations referring collectively to "Defendants." The Court has sustained the demurrer to the negligent hiring, retention, and supervision claim. Striking its essential allegations separately would be duplicative and unnecessary. Collective terminology also is not categorically improper where the complaint otherwise identifies the conduct and theories asserted against the respective defendants. The motion to strike these allegations is DENIED.

Emotional-Distress Allegations

The complaint seeks

damages for emotional distress, humiliation, embarrassment, shock, loss of enjoyment of life, and inability to engage in normal activities. These allegations describe claimed compensatory harm from the alleged physical restraint and injuries; they are not facially irrelevant or improper. The motion to strike the emotional-distress allegations is DENIED.

Premises Allegations

AGS seeks to strike

allegations that Defendants negligently maintained or controlled the premises because the complaint does not establish that AGS owned or possessed the Ralphs store. The challenged allegations are relevant to Plaintiff's asserted negligence theory and are not demonstrably false or improper on the face of the complaint. The motion to strike the premises allegations is DENIED.